



Allocation Principles 2014

made under section 96-1 of the

Aged Care Act 1997

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About this compilation

This compilation

This is a compilation of the *Allocation Principles 2014* that shows the text of the law as amended and in force on 1 October 2022 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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Part 1—Preliminary

1 Name of principles

These principles are the *Allocation Principles 2014*.

3 Authority

These principles are made under section 96-1 of the *Aged Care Act 1997*.

4 Definitions

Note: A number of expressions used in these principles are defined in the Act, including the following:

- (a) key personnel;
- (b) people with special needs;
- (c) region;
- (d) relinquish;
- (e) subsidy.

In these principles:

Act means the *Aged Care Act 1997*.

Aged Care Quality Standards means the Aged Care Quality Standards set out in the *Quality of Care Principles 2014*.

assisted resident has the meaning given by clause 1 of Schedule 1 to the *Aged Care (Transitional Provisions) Act 1997*.

A residential care service is a **commencing service** if:

- (a) an approved provider has been allocated places, under Division 14 of the Aged Care Act, for the service; and
- (b) residential care has not previously been provided for those places through that service; and
- (c) the service is not an accredited service or a previously accredited service.

Note: A change in the approved provider to which places are allocated for a residential care service, or a change in the location of a residential care service, does not make the service a commencing service.

concessional resident has the meaning given by clause 1 of Schedule 1 to the *Aged Care (Transitional Provisions) Act 1997*.

concessional resident supplement means the supplement referred to in section 44-6 of the *Aged Care (Transitional Provisions) Act 1997*.

flexible care agreement has the meaning given by section 4 of the *User Rights Principles 2014*.

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government officer means an officer or employee of the Commonwealth, a State or Territory or a local government authority.

home care setting has the meaning given by section 4 of the *Subsidy Principles 2014*.

low-means care recipient has the meaning given by section 5.

representative, of a care recipient, has the meaning given by section 6.

residential care setting has the meaning given by section 4 of the *Subsidy Principles 2014*.

short-term restorative care has the meaning given by section 4 of the *Subsidy Principles 2014*.

STRC Programme has the meaning given by section 4 of the *Subsidy Principles 2014*.

supported resident has the meaning given by clause 1 of Schedule 1 to the *Aged Care (Transitional Provisions) Act 1997*.

5 Meaning of low-means care recipient

A care recipient is a **low-means care recipient** on a day if:

- (a) the care recipient is being provided with residential care through a residential care service on that day; and
- (b) either:
 - (i) the care recipient is eligible for accommodation supplement under section 44-28 of the Act for that day; or
 - (ii) on the day (the **entry day**) on which the care recipient entered the residential care service, the care recipient's means tested amount was less than the maximum accommodation supplement amount for the entry day.

Note: **Maximum accommodation supplement amount** has the meaning given by subsection 44-21(6) of the Act.

6 Meaning of representative

- (1) In these principles, **representative**, of a care recipient, means:
 - (a) a person nominated by the care recipient as a person to be told about matters affecting the care recipient; or
 - (b) a person:
 - (i) who nominates himself or herself as a person to be told about matters affecting a care recipient; and
 - (ii) who the relevant approved provider is satisfied has a connection with the care recipient, and is concerned for the safety, health and well-being of the care recipient.

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- (2) Without limiting subparagraph (1)(b)(ii), a person has a connection with a care recipient if:
- (a) the person is a partner, close relation or other relative of the care recipient;
or
 - (b) the person holds an enduring power of attorney given by the care recipient;
or
 - (c) the person has been appointed by a State or Territory guardianship board (however described) to deal with the care recipient's affairs; or
 - (d) the person represents the care recipient in dealings with the approved provider.

Note: Nothing in this section is intended to affect the powers of a substitute decision-maker appointed for a person under a law of a State or Territory.

Part 2—Planning the allocation of places

9 Purpose of this Division

For section 12-5 of the Act, this Division specifies:

- (a) the kinds of people in respect of whom the Secretary may determine the proportion of care that must be provided; and
- (b) the criteria that the Secretary must consider in determining that proportion.

10 Kinds of people in respect of whom Secretary may determine proportion of care

For subsection 12-5(1) of the Act, the following kinds of people are specified:

- (a) people with special needs;
- (b) low-means care recipients;
- (c) supported residents, concessional residents and assisted residents.

11 Criteria that must be considered in making determination

For subsection 12-5(2) of the Act, the Secretary must consider the following criteria:

- (a) the need for places in each region for the kinds of people specified in section 10;
- (b) the current service provision levels, including provisional allocations for those kinds of people;
- (c) the existing provision of extra service places in each region;
- (d) the need to distribute places equitably in each region, and in each State and Territory, as far as practicable.

Part 4—The allocation process

Division 1—Invitations to apply for allocation of places

25 Purpose of this Division

For paragraph 13-2(3)(e) of the Act, this Division specifies the kinds of people that may be specified in an invitation to apply for an allocation of places.

26 Proportion of care for specified kinds of people

The kinds of people that may be specified in an invitation to apply for an allocation of places are as follows:

- (a) people with special needs;
- (b) low-means care recipients;
- (c) supported residents, concessional residents and assisted residents.

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Division 2—Assessment of applications

27 Purpose of this Division

For section 14-2 of the Act, this Division sets out the matters that the Secretary must consider in deciding, in relation to each application for the allocation of places in respect of a particular type of subsidy, which allocation of places would best meet the needs of the aged care community in a region.

28 Competitive assessment of applications for allocations

- (1) For an allocation of places in respect of residential care subsidy, the Secretary must consider the following matters:
 - (a) whether the people who manage, or propose to manage, the aged care service that is providing, or would provide, the care to which the places relate have the necessary expertise and experience to do so;
 - (b) if applicable, whether the premises used, or intended to be used, to provide the care to which the places relate are suitably planned and located for the provision of aged care;
 - (d) if the applicant has been a provider of aged care—the applicant's:
 - (i) conduct as a provider; and
 - (ii) compliance with its responsibilities as a provider and its obligations arising from the receipt of any payments from the Commonwealth for providing that aged care;
 - (e) if the applicant has relevant key personnel in common with a person who is or has been an approved provider—that person's:
 - (i) conduct as a provider of aged care; and
 - (ii) compliance with its responsibilities as a provider and its obligations arising from the receipt of any payments from the Commonwealth for providing that aged care;
 - (f) the measures that the applicant proposes to implement:
 - (i) to protect the rights of care recipients; and
 - (ii) for the provision of appropriate care for care recipients who are people with special needs.
- (1A) For an allocation of places in respect of flexible care subsidy for short-term restorative care, the Secretary must consider the following matters:
 - (a) the applicant's demonstrated experience in delivering restorative care that would meet the objectives of the STRC Programme and ensure appropriate outcomes for care recipients;
 - (b) if the applicant has been a provider of aged care—whether the applicant has complied with its responsibilities as a provider and its obligations arising from the receipt of any payments from the Commonwealth for providing that aged care;
 - (c) the model of service delivery that the applicant proposes to adopt in order to meet the objectives of the STRC Programme, including:

- (i) how the applicant proposes to effectively engage with prospective care recipients, and their carers (if any), to prepare flexible care agreements for the care recipients; and
 - (ii) how the applicant proposes to utilise the connections it has to the community in which it proposes to provide short-term restorative care (including connections to primary care and other service providers) and how these connections will support a multi-disciplinary approach to care delivery; and
 - (iii) how the applicant proposes to deliver short-term restorative care in a home care setting or a residential care setting, or both a home care setting and a residential care setting; and
 - (iv) how the applicant proposes to transition care recipients between care settings.
- (2) The reference in paragraphs (1)(d) and (e) and (1A)(b) to aged care includes a reference to any care for the aged, whether provided before or after the commencement of this section, in relation to which any payment was or is payable under a law of the Commonwealth.
- (3) For paragraph (1)(e), the applicant has ***relevant key personnel in common*** with a person who is or has been an approved provider (the ***other provider***) if:
 - (a) at the time the other provider provided aged care, another person was one of the other provider's key personnel; and
 - (b) that other person is one of the applicant's key personnel.

29 Diversity of choice for care recipients

For an allocation of places in respect of residential care subsidy, the Secretary must consider whether, if the application is approved, the allocation will increase diversity of choice for current and future care recipients, and their carers and families, having regard to the different kinds of services offered in the region.

Example: Diversity of choice for different kinds of services might be promoted, for instance, in relation to any of the following:

- (a) service in a particular location;
- (b) service for people with special needs;
- (c) service for care recipients affected by dementia;
- (d) ageing in place service;
- (e) service to meet the needs of couples.

30 Continuity of care

For an allocation of places in respect of residential care subsidy, the Secretary must consider whether, if the application is approved, the service to which the application relates would be more likely to be able to offer continuity of care to current and future care recipients.

Section 31

31 Secretary may also consider other matters

For an allocation of places in respect of residential care subsidy or flexible care subsidy for short-term restorative care, the Secretary may also consider any other relevant matters.

Division 3—Conditions of allocation of places

33 Conditions of allocation—generally

(1) For subsection 14-6(2) of the Act, the Secretary must determine conditions to the following effect:

- (a) that a care recipient cannot be discharged and readmitted:
 - (i) to attract the accommodation supplement under the Act; or
 - (ii) to attract the accommodation supplement or the concessional resident supplement under the *Aged Care (Transitional Provisions) Act 1997*; or
 - (iia) to attract the initial entry adjustment supplement set out in Subdivision I of Division 5 of Part 3 of Chapter 2 of the *Subsidy Principles 2014*; or
 - (iib) to attract the initial entry adjustment supplement set out in Subdivision H of Division 8 of Part 3 of Chapter 2 of the *Aged Care (Transitional Provisions) Principles 2014*; or
 - (iii) to enable an aged care service to charge the care recipient an accommodation bond;
- (b) that an aged care service will be recognised as a new service only if the service relocates to:
 - (i) a facility built for the service's relocation; or
 - (ii) a location that has no part of its catchment area in common with the catchment area of the location from which it moves;
- (c) that Part III of Determination No. ADPCA 10F 3/1995 made under the *Aged or Disabled Persons Care Act 1954*, as in force on 30 September 1997, applies to a care recipient who was a resident of an approved hostel under that Act on that date.

Example: A service will not be recognised as a new service only because of any of the following:

- (a) a change of approved provider for the service;
- (b) a change in the number of places allocated to the service;
- (c) a temporary relocation of the service;
- (d) an amalgamation of co-located services.

(2) The Secretary may determine other relevant conditions.

Part 5—When allocations take effect

Division 1—When allocations take effect

35 Purpose of this Division

For section 15-1 of the Act, this Division specifies matters to which the Secretary must have regard in deciding whether to determine that a person is in a position to provide care, in respect of places allocated to the person, for which residential care subsidy may be paid.

36 Matters to which Secretary must have regard

- (1) The matters to which the Secretary must have regard are as follows:
 - (a) whether the person has received, from authorities in the State or Territory where the residential care service is located, authorisation that the service's premises can be occupied;
 - (b) whether the person has applied for accreditation of the service, and has paid all application fees;
 - (c) whether the person has made arrangements for the efficient management and operation of the service;
 - (d) the results of any inspection of the premises by officers of the Department.
- (2) The Secretary may also have regard to any other relevant matter.

Division 2—Provisional allocation periods

37 Purpose of this Division

For subsection 15-7(3A) of the Act, this Division specifies the matters that must be considered by the Secretary when determining whether exceptional circumstances exist that justify the granting of a further extension.

38 Matters to be considered

- (1) For subsection 15-7(3A) of the Act, the matters the Secretary must have regard to when considering whether exceptional circumstances justifying the granting of a further extension are:
 - (a) whether there are any unusual or unforeseen matters outside the control of the approved provider, including but not limited to the occurrence of a natural disaster or emergency situation, preventing the approved provider from applying under section 15-1 of the Act for a determination that the approved provider is in a position to provide care; and
 - (b) whether the approved provider will be in a position to provide care within the period of the extension; and
 - (c) whether granting the extension is necessary because no other provider is able to satisfy the care needs in the region.

Note: The Secretary will consider the matters set out in this section when determining whether exceptional circumstances justify an extension of the provisional allocation period for a further 12 months, taking the total provisional allocation period beyond six years.

Part 6 Transfer of places other than provisionally allocated places

Division 1 Application of this Part

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Part 6—Transfer of places other than provisionally allocated places

Division 1—Application of this Part

41 Application of this Part

This Part applies to places other than provisionally allocated places.

Division 2—Transfer of places

42 Purpose of this Division

For section 16-2 of the Act, this Division:

- (a) specifies other information that is to be included in a transfer notice for the transfer of a place from an approved provider to another person (the *proposed transferee*); and
- (b) sets out matters that the Secretary must consider:
 - (i) in deciding whether to determine another period for paragraph 16-2(4)(a) or (b) of the Act; and
 - (ii) in determining another period.

43 Other information to be included in transfer notice—places in respect of residential care or flexible care subsidy

- (1) For subparagraph 16-2(3)(h) of the Act, a transfer notice from an approved provider to transfer places in respect of residential care or flexible care subsidy must include the following other information:
 - (a) whether the provider has notified the affected care recipients, or their representatives, about the proposed transfer, and if so, how and when they were notified, or when it is proposed that they would be notified; and
 - (b) whether any concerns about the proposed transfer were expressed to the provider by care recipients, or their representatives, and if so, the measures the provider and the proposed transferee propose to take to deal with the concerns; and
 - (c) the measures that the provider proposes to take to:
 - (i) help the care recipients find suitable alternative care and accommodation of their choice if they do not wish to transfer to the new service;
 - (ii) maintain services for the affected care recipients, while transferring services;
 - (iii) help the affected care recipients move (with their personal possessions) if they are required to relocate;
 - (iv) ensure that the affected care recipients will not be disadvantaged because of the proposed transfer.
- (2) The transfer notice must also include the following information, given by the proposed transferee:
 - (a) how the transferee proposes to:
 - (i) undertake the responsibilities of an approved provider under Parts 4.1 and 4.2 of the Act and Part 4.2 of the Aged Care (Transitional Provisions) Act 1997; and
 - (ii) provide accommodation and care for care recipients with special needs.

Section 45

- (b) if the transferee is a commencing service, or proposes to construct or develop premises to accommodate the transferred places;
 - (i) a description of the project; and
 - (ii) a detailed timetable for the project.
 - (c) how the transferee intends to comply with any existing conditions of allocation and any conditions that are varied as part of the application to transfer the places.
- (3) The latest financial statements of the proposed transferee's aged care services (if any) must also be included with the transfer notice.

45 Matters to be considered in deciding whether to determine different notice period

- (1) For subsection 16-2(6) of the Act, the Secretary must consider the following matters in deciding whether to determine another notice period for paragraph 16-2(4)(a) or (b) of the Act:
 - (a) the reasons why the different period has been requested;
 - (b) any concerns about the application expressed by care recipients in the aged care service about the timing of the transfer.
- (2) The Secretary may also consider any other relevant matter.

46 Matters to be considered in determining different notice period

- (1) For subsection 16-2(6) of the Act, if the Secretary has decided to determine another notice period for paragraph 16-2(4)(a) or (b) of the Act, the Secretary must consider the following matters in determining the other notice period:
 - (a) any concerns about the transfer notice expressed by care recipients who receive care through the applicant's aged care service;
 - (b) whether the period will be adequate to allow for the processing of the transfer notice.
- (2) The Secretary may also consider any other relevant matters.

Division 3—Consideration of transfers

47 Purpose of this Division

For paragraph 16-3(1)(g) of the Act, this Division sets out other matters that the Secretary must consider after receiving a transfer notice.

48 Other matters that must be considered

- (1) The Secretary must consider the effect of the proposed transfer, on the current and future care recipients in:
 - (a) the region from which the places will be transferred; and
 - (b) the region to which the places will be transferred.
- (2) In considering the effect of the proposed transfer on current and future care recipients, the Secretary must take into account the following:
 - (a) the extent to which the provision of aged care in the region to which the places are to be transferred will benefit as a result of the transfer;
 - (b) the extent to which the provision of aged care in the region from which the places are to be transferred will be adversely affected as a result of the transfer;
 - (c) whether the transfer would increase or lessen the diversity of choice available to care recipients in the regions, having regard to the different kinds of services available in the region;
 - (d) whether the transfer will increase the likelihood of care recipients receiving continuity of care in a region;
 - (e) any concerns about the transfer expressed by care recipients who are provided with care through the applicant's aged care service;
 - (g) if, after the transfer, the places would relate to the same aged care service:
 - (i) the suitability of the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, in particular, whether the premises would comply with the Aged Care Quality Standards; and
 - (ii) for a transferee who owns the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, being premises that would not comply with the Aged Care Quality Standards—the failure of the transferee to have improved the premises.

Example for paragraphs (2)(a) and (b):

The Secretary may consider whether the transfer would affect the provision, in the regions, of aged care services that meet particular needs, including the provision of the following:

- (b) services for those affected by dementia;
- (c) ageing in place services;
- (d) services for couples with differing care needs.

Part 6 Transfer of places other than provisionally allocated places

Division 3 Consideration of transfers

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The Secretary may also consider the effect of the transfer on the quality of services provided in the regions.

Example for paragraph (2)(c):

In considering choice, kinds of services available in the region may include the following:

- (a) services that have extra service status;
- (b) ageing in place services;
- (c) service for care recipients affected by dementia;
- (d) services for people with special needs.

Example for paragraph (2)(d):

The Secretary may take into account whether the service has demonstrated its long-term financial and organisational viability.

- (3) The Secretary may consider any other relevant matter.

Division 4—Other matters

49 Purpose of this Division

This Division specifies other matters relating to the transfer of places from one person (the *transferor*) to another person (the *transferee*).

51 Information that may be given to transferee and time for giving information

Information that may be given to transferee

- (1) For section 16-10 of the Act, the Secretary may give the transferee information about the following matters:
 - (a) the types of subsidies paid to the transferor for the aged care service in which places being transferred are included;
 - (b) the likely future adjustments to the subsidy payments;
 - (d) if the aged care service in which the places being transferred are included is a residential care service:
 - (ii) matters relating to whether the service meets its accreditation requirement; and
 - (iii) matters relating to the residential care grants (if any) made in respect of the service;
 - (e) matters relating to any of the following payments that have been made in respect of the aged care service in which the places being transferred are included:
 - (i) capital payments of a kind specified in the *Aged Care (Transitional Provisions) Principles 2014* for the purposes of section 43-6 of the *Aged Care (Transitional Provisions) Act 1997*;
 - (ii) capital payments of a kind specified in the *Subsidy Principles 2014* for the purposes of section 43-6 of the Act;
 - (f) compliance by the transferor with the transferor's responsibilities under Chapter 4 of the Act in relation to the aged care service referred to in paragraph (e), including any action that has been taken or is proposed to be taken, under Part 7B of the Quality and Safety Commission Act, in relation to that aged care service;
 - (g) for care recipients who are receiving residential care from the transferor's aged care service:
 - (i) their current classification levels of care (if applicable); and
 - (ii) their classification histories; and
 - (iii) their financial status;
 - (h) the conditions to which the places being transferred are subject;
 - (i) any other matters about the transferor's aged care service of which the Secretary considers the transferee should be informed.
- (2) However, the Secretary must not give the transferee information that would, or would be likely to, disclose the identity of any care recipient.

Section 52

When information is to be given

- (3) If the Secretary decides to give the transferee information under subsection (1), the Secretary must give the information to the transferee at least 28 days before the transfer day.

Note: The transfer day is the day when the transfer of an allocated place from one person to another takes effect. The day is set under section 16-8 of the Act.

- (4) However, if the transferor requests the Secretary, in writing, to give the information to the transferee, the Secretary must comply with the request within 28 days after receiving it.

52 Records to be given by transferor to transferee

For paragraph 16-11(2)(h) of the Act, the transferor must give the transferee the records of the name and contact details of each representative of a care recipient who is receiving care in respect of a place being transferred.

Part 7—Transfer of provisionally allocated places

Division 1—Application of this Part

53 Application of this Part

This Part applies to provisionally allocated places.

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Division 2—Transfer of provisionally allocated places

54 Purpose of this Division

For section 16-13 of the Act, this Division:

- (a) specifies other information to be included in a transfer notice for the transfer of a provisionally allocated place from an approved provider to another person (the *proposed transferee*); and
- (b) sets out matters that the Secretary must consider:
 - (i) in deciding whether to determine another period for paragraph 16-13(4)(a) or (b) of the Act; and
 - (ii) in determining another period.

55 Other information to be included in transfer notice

- (1) For paragraph 16-13(3)(j) of the Act, a transfer notice by an approved provider (the *transferor*) to transfer provisionally allocated places must include the following other information:
 - (a) the reasons why the transferor seeks to have the provisionally allocated places transferred;
 - (b) the exceptional circumstances that the transferor considers will justify the transfer in meeting the needs of the aged care community in the region for which the places were provisionally allocated.
- (2) The transfer notice must also include the following information, given by the proposed transferee:
 - (a) how the transferee proposes to undertake the responsibilities of an approved provider under Parts 4.1 and 4.2 of the Act and Part 4.2 of the *Aged Care (Transitional Provisions) Act 1997*;
 - (b) how the transferee proposes to provide accommodation and care for care recipients with special needs; and
 - (c) if the transferee proposes to construct or develop premises to accommodate the transferred places;
 - (i) a description of the project; and
 - (ii) a detailed timetable for the project; and
 - (iii) how the transferee intends to comply with any existing conditions of allocation and any conditions that are varied as part of the application to transfer the places.
- (3) The latest financial statements of the proposed transferee's aged care services (if any) must also be included with the transfer notice.

56 Matters to be considered in deciding whether to determine different notice period

- (1) For subsection 16-13(6) of the Act, the Secretary must consider the following matters in deciding whether to determine another notice period for paragraph 16-13(4)(a) or (b) of the Act:
 - (a) the reasons why the different notice period has been requested.
- (2) The Secretary may also consider any other relevant matter.

57 Matters to be considered in determining different notice period

- (1) For subsection 16-13(6) of the Act, if the Secretary has decided to determine another notice period for paragraph 16-13(4)(a) or (b) of the Act, the Secretary must consider the following matters in determining the other application period:
 - (a) whether the period will be adequate to allow for the processing of the transfer notice.
- (2) The Secretary may also consider any other relevant matters.

Division 3—Consideration of transfers

58 Purpose of this Division

For paragraph 16-14(1)(j) of the Act, this Division sets out other matters that the Secretary must be satisfied of when considering a transfer notice to transfer provisionally allocated places.

59 Other matters that must be considered

- (1) The Secretary must consider whether the Secretary is satisfied of the following:
 - (a) that there are exceptional circumstances justifying the transfer, having regard to the residential care needs of the region; and
 - (b) that the residential care needs of the region have changed since the provisional allocation of the places; and
 - (c) how the development of the service, to which the provisional allocation of places was made, has progressed; and
 - (d) the extent to which the care needs of the region would be better met by transferring the provisionally allocated places to the transferee than by not transferring the places..
- (2) In considering the effect of the proposed transfer on future care recipients, the Secretary must take into account the following:
 - (a) whether the transfer would increase or lessen the diversity of choice available to care recipients in the region, having regard to the different kinds of services available in the region;
 - (b) whether the transfer will increase the likelihood of care recipients receiving continuity of care in a region;
 - (d) if, after the transfer, the places would relate to the same aged care service:
 - (i) the suitability of the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, in particular whether the premises would comply with the Aged Care Quality Standards; and
 - (ii) for a transferee who owns the premises being used by the transferor, and proposed to be used by the transferee, to provide care through the aged care service, being premises that would not comply with the Aged Care Quality Standards—the failure of the transferee to have improved the premises.

Example for paragraph (2)(a):

In considering choice, kinds of services available in the region may include the following:

- (a) services that have extra service status;
- (b) ageing in place services;
- (c) service for those affected by dementia;
- (d) services for people with special needs.

Example for paragraph (2)(b):

The Secretary may take into account whether the service has demonstrated its long-term financial and organisational viability.

Note: The Secretary may veto the transfer if the location for which the place is provisionally allocated will change as a result of the transfer (see paragraph 16-17(1)(d) of the Act).

(3) The Secretary may consider any other relevant matter.

Division 4—Other matters

60 Purpose of this Division

This Division specifies other matters relating to the transfer of provisionally allocated places from one person (the *transferor*) to another person (the *transferee*).

62 Information that may be given to transferee and time for giving information

Information that may be given to transferee

- (1) For section 16-21 of the Act, the Secretary may give the transferee information about the following matters:
 - (c) matters relating to whether the aged care service meets its accreditation requirement;
 - (d) matters relating to the residential care grants (if any) made for the aged care service;
 - (e) matters relating to any grants under the *Aged or Disabled Persons Care Act 1954*, or Part VAB of the *National Health Act 1953*, that have been made for the aged care service;
 - (f) compliance by the transferor with the transferor's responsibilities under Chapter 4 of the Act in relation to the aged care service, including any action that has been taken or is proposed to be taken, under Part 7B of the *Quality and Safety Commission Act*, for the aged care service;
 - (g) the conditions to which the places being transferred are subject;
 - (h) any other matters about the transferor's aged care service of which the Secretary considers the transferee should be informed.

When information is to be given

- (2) If the Secretary decides to give the transferee information under subsection (1), the Secretary must give the information to the transferee at least 28 days before the transfer day.

Note: The transfer day is the day when the transfer of a provisionally allocated place from one person to another takes effect. The day is set under section 16-19 of the Act.

- (3) However, if the transferor asks the Secretary, in writing, to give the information to the transferee, the Secretary must comply with the request within 28 days after receiving it.

Part 8—Variation of conditions for allocations of places

Division 1—Applications for variation of conditions

63 Purpose of this Division

For paragraph 17-2(2)(b) of the Act, this Division specifies the information that must be included in an application to vary the conditions of an allocation of places.

64 Information that must be included in application

- (1) The following information must be included in the application:
 - (a) the applicant's name;
 - (b) the aged care service to which the allocation relates, and its location;
 - (c) the number of places to which the variation relates, and the conditions to which they are subject under Division 14 of the Act;
 - (d) whether any of the places is a place included in a residential care service, or a distinct part of a residential care service, that has extra service status;
 - (e) if the places are residential care places and, after the variation, the care in respect of the places would be provided at a different location:
 - (i) the address of the new location; and
 - (ii) the proposals for ensuring that care needs are appropriately met for care recipients who are being provided with care in respect of the places;
 - (f) the conditions of the allocation to be varied and the proposed variation;
 - (g) the proposed variation day;
 - (h) if the application is made less than 60 days before the proposed variation day—the reason for this;
 - (i) the applicant's assessment of the effect of the proposed variation on care recipients.

Note: Under subsection 15-1(1) of the Act, an allocation of places to an approved provider takes effect when the Secretary determines that the approved provider is in a position to provide care, in respect of those places, for which subsidy may be paid.

- (2) If the application is to change the location of the allocation, and the applicant proposes to construct or develop premises to accommodate the relocated places at the new location, the following information must also be included in the application:
 - (a) a description of the project;
 - (b) an estimate of the total cost;
 - (c) a detailed description of the site, including size, suitability, topography and any heritage issues;
 - (d) the ownership arrangements of the proposed site;
 - (e) how the land around the site is being used;

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- (f) whether there are any proposals before an authority in the State or Territory concerned about the use of the site (for example, proposals to rezone the site);
- (g) the characteristics of the neighbourhood of the site, including location of shops, and the availability of public transport and community services;
- (h) a detailed timetable for calling tenders, planning and construction, and an indication of the applicant's ability to meet the timetable.

Division 2—Consideration of applications

65 Purpose of this Division

For paragraph 17-4(g) of the Act, this Division sets out other matters that the Secretary must consider in deciding whether a variation of the conditions of an allocation is justified in the circumstances.

66 Other matters to be considered

- (1) If an application for a variation proposes to change the location of an allocation of places, the Secretary must consider the effect of the proposed change of location, if the application is approved, on current and future care recipients in:
 - (a) the region from which the places will be transferred; and
 - (b) the region to which the places will be transferred.
- (2) In considering the effect of the proposed variation, the Secretary must take into account:
 - (b) the extent to which, after the variation, current and future care recipients in the region in which the service operates will benefit; and
 - (c) whether the variation will increase or lessen the diversity of choice available to current and future care recipients in the region, having regard to the different kinds of services available in the region; and
 - (d) whether the variation will increase the likelihood of current and future care recipients receiving continuity of care in the local area within the region.

Example for paragraph (2)(b):

The Secretary may consider whether the variation would affect the provision of aged care services that meet particular needs, including the provision of the following:

- (b) services for those affected by dementia;
- (c) ageing in place services;
- (d) services for couples with differing care needs.

The Secretary may also consider the effect of the variation on the quality of services provided in the regions.

Example for paragraph (2)(c):

In considering choice, kinds of services available in the region may include the following:

- (a) services that have extra service status;
- (b) ageing in place services;
- (c) service for care recipients affected by dementia;
- (d) services for people with special needs.

Example for paragraph (2)(d):

The Secretary may take into account whether the service has demonstrated its long-term financial and organisational viability.

- (3) The Secretary may also consider any other relevant matter.

Part 9—Allocations ceasing to have effect

Division 1—Relinquishing places in respect of residential care subsidy

67 Purpose of this Division

This Division specifies:

- (a) for subsection 18-2(3) of the Act—the matters that must be dealt with in the proposals of an approved provider for ensuring that care needs are appropriately met for those care recipients (if any) who are being provided with residential care in respect of places that are to be relinquished by the provider; and
- (b) for subsection 18-3(2) of the Act—the matters that the Secretary must take into account in deciding whether those proposals are satisfactory.

Note: The proposals are required to be included in the notice of relinquishment given to the Secretary under subsection 18-2(1) of the Act.

68 Matters that must be dealt with by proposals

For subsection 18-2(3) of the Act, the approved provider's proposals must deal with the following matters in relation to the places that are to be relinquished:

- (a) whether the provider has notified the affected care recipients about the relinquishing of the places and, if so:
 - (i) when they were notified; and
 - (ii) whether the notification was in writing;
- (b) if the provider has met the affected care recipients to discuss the relinquishing of the places:
 - (i) when the meeting was held; and
 - (ii) whether there is written evidence of the issues discussed at the meeting; and
 - (iii) whether any concerns about the relinquishing of the places were expressed to the provider by care recipients and, if so, the measures the provider proposes to take to deal with the concerns;
- (c) whether representatives of the affected care recipients have been notified about the relinquishing of the places;
- (d) whether the provider has helped the affected care recipients find suitable alternative care and accommodation of their choice;
- (e) for affected care recipients who are not able to choose premises:
 - (i) the measures (if any) that the provider has taken to find suitable care for them at other premises; and
 - (ii) if the provider has taken such measures—whether the provider considered all aspects of the accommodation and services that the care recipients currently have, and the location of the provider's premises, before taking the measures;

- (f) the measures that the provider proposes to take, while relinquishing the places:
 - (i) to maintain services for the affected care recipients; and
 - (ii) to provide care services to the affected care recipients who will stay at the provider's premises;
- (g) the way (if any) in which the provider proposes to help the affected care recipients move (with their personal possessions);
- (h) the guarantees that the provider gives that the affected care recipients will not be disadvantaged, or discriminated against, before they move to new premises;
- (i) whether the provider is prepared to offer help to the affected care recipients that is additional to the current standard of care and other services (for example, giving the care recipient an audited statement of accounts);
- (j) the measures that the provider proposes to take to settle the accounts of the affected care recipients and refund their refundable deposit balances as required by section 52P-1 of the Act.

69 Matters that Secretary must take into account in deciding if proposals are satisfactory

- (1) For subsection 18-3(2) of the Act, the Secretary must take the following matters into account:
 - (a) whether the care recipients have been given sufficient notice, by letters, meetings or otherwise, about the relinquishing of the places and relocating;
 - (b) whether representatives of the care recipients have been notified about the relinquishing of the places and relocating;
 - (c) whether the approved provider is helping the care recipients find suitable accommodation and care that meets their assessed long-term needs and is affordable by them;
 - (d) whether the approved provider is maintaining the same standard of care and other services for the care recipients before the relocation day;
 - (e) whether the approved provider is offering help to the care recipients that is additional to the current standard of care and other services being provided to the care recipients;
 - (f) whether the approved provider has indicated that financial arrangements for the care recipients may be finalised before the time required by section 52P-1 of the Act;
 - (g) whether the interests of care recipients in their accommodation and care will be protected;
 - (h) whether the care recipients will be unduly disadvantaged financially after relocation;
 - (i) whether the needs and expectations of the care recipients will be satisfied or improved after relocation.
- (2) The Secretary may also take other relevant matters into account.

Division 3—Revocation of unused allocations of places

73 Purpose of this Division

This Division specifies:

- (a) for subsection 18-5(1) of the Act—the period for which the allocation of a place in respect of flexible care subsidy for short-term restorative care may remain unused before being revoked; and
- (b) for paragraph 18-5(3)(b) of the Act—the matters that the Secretary must consider in deciding whether to revoke the allocation of a place to an approved provider.

73A Period after which allocation may be revoked—allocations in respect of flexible care subsidy for short-term restorative care

For subsection 18-5(1) of the Act, the Secretary may revoke the allocation of the place under that subsection if:

- (a) the allocation is in respect of flexible care subsidy for short-term restorative care; and
- (b) the approved provider to whom the place is allocated has not, for a continuous period of 6 months, provided short-term restorative care in respect of the place.

74 Matters that must be considered

- (1) The Secretary must consider the following matters:
 - (a) whether the decision not to use the place is temporary, and whether the approved provider intends to use the place in the near future;
 - (b) why the place has not been used;
 - (c) whether the place can only be operated by the approved provider because of the specialised nature of the provider's service and the place's subsidy type;
 - (d) whether revoking the allocation would have detrimental effects on the community that the place is intended to service;
 - (e) whether revoking the place would unduly affect the approved provider's economic viability;
 - (f) whether allocating the place to another provider would better serve the interests of the community;
 - (g) whether revoking the place and reallocating it is warranted;
 - (h) whether any conditions of allocation under Division 14 of the Act could be varied to better serve the interests of the community;
 - (i) demographic factors, including temporary movements in population, that may affect the place's viability.
- (2) The Secretary may also take any other relevant matter into account.

Part 10—Application, saving and transitional provisions

75 Application of amendments made by the *Aged Care Legislation Amendment (Single Quality Framework Consequential Amendments and Transitional Provisions) Instrument 2019*

Sections 48 and 59 of these principles, as amended by the *Aged Care Legislation Amendment (Single Quality Framework Consequential Amendments and Transitional Provisions) Instrument 2019*, apply in relation to a transfer notice that is received by the Secretary on or after the day that instrument commences.

76 Application of amendments made by Schedule 3 to the *Aged Care Legislation Amendment (Residential Aged Care Funding) Instrument 2022*

- (1) Section 10, as amended by Schedule 3 to the *Aged Care Legislation Amendment (Residential Aged Care Funding) Instrument 2022* (the **amending Schedule**), applies in relation to a determination made on or after 1 October 2022.
- (2) Section 26, as amended by the amending Schedule, applies in relation to an invitation published on or after 1 October 2022.
- (3) Section 48, as amended by the amending Schedule, applies in relation to a transfer notice received on or after 1 October 2022.
- (4) Sections 51 and 62, as amended by the amending Schedule, apply in relation to information given on or after 1 October 2022.
- (5) Sections 64 and 66, as amended by the amending Schedule, apply in relation to an application made on or after 1 October 2022.

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Name	Registration	Commencement	Application, saving and transitional provisions
Allocation Principles 2014	25 June 2014 (F2014L00812)	1 July 2014 (s 2)	
Aged Care Legislation Amendment (Removal of Certification and Other Measures) Principles 2015	30 June 2015 (F2015L00998)	Sch 1 (items 7–10): 1 July 2015 (s 2(1) item 1)	—
Aged Care Legislation Amendment (Short-term Restorative Care) Principles 2016	5 May 2016 (F2016L00670)	Sch 1 (items 1–8): 6 May 2016 (s 2(1) item 1)	—
Allocation Principles Amendment Principle 2016	12 May 2016 (F2016L00779)	13 May 2016 (s 2(1) item 1)	—
Aged Care Legislation Amendment (Increasing Consumer Choice) Principles 2016	23 Sept 2016 (F2016L01492)	Sch 1 (items 8–25): 27 Feb 2017 (s 2(1) item 3)	—
Aged Care Legislation Amendment (Single Quality Framework Consequential Amendments and Transitional Provisions) Instrument 2019	3 Apr 2019 (F2019L00515)	Sch 1 (items 42–48): 1 July 2019 (s 2(1) item 1)	—
Aged Care Legislation Amendment (New Commissioner Functions) Instrument 2019	23 Dec 2019 (F2019L01696)	Sch 1 (item 37): 1 Jan 2020 (s 2(1) item 1)	—
Aged Care Legislation Amendment (Residential Aged Care Funding) Instrument 2022	29 Sept 2022 (F2022L01276)	Sch 3 (items 10–20): 1 Oct 2022 (s 2(1) item 1)	—

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 2	rep LIA s 48D
s 4	am F2016L00670; F2016L00779; F2019L00515
Part 2	
Division 1	rep F2016L00779
s 7	rep F2016L00779
s 8	rep F2016L00779
s 10	am F2016L01492; F2022L01276
	ed C7
Division 2 heading	rep F2016L00779
Part 3	rep F2016L00779
s 12	rep F2016L00779
s 13	rep F2016L00779
s 14	rep F2016L00779
s 15	rep F2016L00779
s 16	rep F2016L00779
s 17	rep F2016L00779
s 18	rep F2016L00779
s 19	rep F2016L00779
s 20	rep F2016L00779
s 21	rep F2016L00779
s 22	rep F2016L00779
s 23	rep F2016L00779
s 24	rep F2016L00779
Part 4	
Division 1	
s 26	am F2016L01492; F2022L01276
	ed C7
Division 2	
s 27	am F2016L00670
s 28	am F2016L00670; F2016L01492
s 29	am F2016L00670; F2016L01492
s 30	am F2016L00670; F2016L01492
s 31	am F2016L00670; F2016L01492
Division 3	
s 32	rep F2022L01276
s 33	am F2022L01276

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 34	rep F2022L01276
Part 5	
Division 2	
s 37	am F2016L00779 ed C3
s 38	rs F2016L00779 am F2016L00779
s 39	rep F2016L00779
s 40	rep F2016L00779
Part 6	
Division 2	
Division 2 heading	rs F2016L00779
s 42	am F2016L00779
s 43	am F2016L00779
s 44	am F2016L00779 ed C3 rep F2016L01492
s 45	am F2016L00779
s 46	am F2016L00779
Division 3	
Division 3 heading	rs F2016L00779
s 47	am F2016L00779 ed C3
s 48	am F2015L00998; F2016L00779; F2016L01492; F2019L00515; F2022L01276
Division 4	
s 50	rep F2016L00779
s 51	am F2015L00998; F2016L00779; F2019L01696; F2022L01276
s 52	am F2016L00779
Part 7	
Division 2	
Division 2 heading	rs F2016L00779
s 54	am F2016L00779
s 55	am F2016L00779
s 56	am F2016L00779 ed C3
s 57	am F2016L00779
Division 3	
Division 3 heading	rs F2016L00779
s 58	am F2016L00779 ed C3

Endnote 4—Amendment history

Provision affected	How affected
s 59	am F2015L00998; F2016L00779; F2019L00515
Division 4	
s 61	rep F2016L00779
s 62	am F2015L00998; F2019L01696; F2022L01276
Part 8	
Division 1	
s 64	am F2016L01492; F2022L01276
Division 2	
s 66	am F2016L01492; F2022L01276
Part 9	
Division 2	rep F2016L01492
s 70	rep F2016L01492
s 71	rep F2016L01492
s 72	rep F2016L01492
Division 3	
s 73	rs F2016L00670
s 73A	ad F2016L00670
Part 10	
Part 10	rep 30 June 2015 (s 76)
	ad F2019L00515
s 75	rep 30 June 2015 (s 76)
	ad F2019L00515
s 76	rep 30 June 2015 (s 76)
	ad F2022L01276

Endnotes

Endnote 5—Editorial changes

Endnote 5—Editorial changes

In preparing this compilation for registration, the following kinds of editorial change(s) were made under the *Legislation Act 2003*.

Paragraphs 10(c) and 26(c)

Kind of editorial change

Changes to punctuation

Details of editorial change

Schedule 3 item 10 of the *Aged Care Legislation Amendment (Residential Aged Care Funding) Instrument 2022* instructs to repeal paragraphs 10(d) and 26(d).

The repeal of paragraphs 10(d) and 26(d) results in paragraphs 10(c) and 26(c) ending with a semicolon despite being the last paragraph of those sections.

This compilation was editorially changed by omitting the semicolon and inserting a full stop at the end of paragraphs 10(c) and 26(c) to correct the punctuation.